

HOUSE No. 5138

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan and Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to consumer protections for low valued legal tender scarcity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/15/2026</i>
<i>Kate Donaghue</i>	<i>19th Worcester</i>	<i>1/21/2026</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>1/15/2026</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/16/2026</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/16/2026</i>
<i>Alan Silvia</i>	<i>7th Bristol</i>	<i>1/18/2026</i>
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>1/22/2026</i>

HOUSE No. 5138

By Representative Chan of Quincy and Senator Feeney, a joint petition (subject to Joint Rule 12) of Tackey Chan, Kate Donaghue and others relative to consumer protections for low valued legal tender scarcity. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to consumer protections for low valued legal tender scarcity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 10A of chapter 255D of the General Laws, as appearing in the
2 2024 Official Edition, is hereby amended by added at the end thereof of the following 2
3 paragraphs:-

4 In any case in which the total transaction amount, including any taxes or fees, ends with 1
5 cent, 2 cents, 6 cents, or 7 cents as the final digit, the amount of cents in the sum shall be
6 rounded down to the nearest amount divisible by 5 for any buyer seeking to make a payment or
7 portion thereof with legal tender. In any case in which the total transaction amount, including
8 any taxes or fees, ends with 3 cents, 4 cents, 8 cents, or 9 cents as the final digit, the amount of
9 cents in the sum shall be rounded up to the nearest amount divisible by 5 for any buyer seeking
10 to make a payment or portion thereof with legal tender; provided, however, where the total
11 transaction amount, including any taxes or fees, totals \$0.01 or \$0.02, such transaction may be
12 rounded up to \$0.05 for any buyer seeking to make a payment with legal tender.

13 The foregoing paragraph shall not apply to goods or services where a buyer offers to use
14 as total payment: electronic fund transfer, check, gift card, money order, credit card, or other
15 similar instrument or method not legal tender.

16 SECTION 2. The office of consumer affairs and business regulation shall promulgate
17 rules and regulations necessary to ensure that establishments provide adequate notice to buyers
18 and maintain the necessary systems and protocols in place relative to the use of legal tender or
19 other forms of payment for goods and services.